

FL-20-002124 COLE VS COLE

County: stanislaus

Division: Family Law

Department: 11

Hearing date: 2026-07-30

Motion: Petitioner's Request for Order re Child Custody, etc.—HEARING REQUIRED. The child custody and visitation request was mediated on July 27, 2026, and is not at issue for this hearing. Petitioner's request to change venue is based solely on her convenience and the residence of the minor children, but custody—both legal and physical—remains joint at this time. The parties' marital status has not been terminated and therefore a change of venue may not be granted merely on one party's convenience alone, but instead must be based on evidence that the convenience of witnesses and the ends of justice will be promoted by granting a change of venue. (Code Civ. Proc., § 397(c).) Petitioner's showing does not address either factor. While the parties are welcome to be heard, the Court is inclined to deny the request without prejudice at this time. Stability of the minor children's placement, including healthcare, education and extra-curricular activities is of paramount concern to the Court, as it no doubt is (or should be) for the parties. The following are the tentative ruling cases calendared before Judge J. Richard Distaso in Department #13:

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